

TENTATIVE RULING

Eduardo Calderon Meza v. D&M Carriers, LLC dba FREYMILLER, et al.; 24CV003526

Plaintiff Eduardo Calderon Meza's Motion to Amend Complaint:

Plaintiff Eduardo Calderon seeks leave to file a First Amended Complaint to make the following changes to his pleading:

1. To substitute Raphael Huffman as Doe 1;
2. To correct the location of the incident to 1275 Hansen Street, Salinas, California; and
3. To delete a regulatory citation from the pleading. ("in direct violation of California Code of Regulations, Title 8 Section 6880(b)").

Defendant D&M Carriers, LLC opposes the motion on the grounds that:

1. A draft of the proposed pleading was not attached to the motion;
2. The motion is untimely;
3. The motion is a sham pleading;
4. The amended complaint would prejudice defendants; and
5. The proposed amended complaint is time-barred and the relation back doctrine does not apply.

The Motion is **GRANTED**.

"California courts have 'policy of great liberality in allowing amendments at any stage of the proceeding so as to dispose of cases upon their substantial merits where the authorization does not prejudice the substantial rights of others.' [Citations.]" (*Douglas v. Superior Court* (1989) 215 Cal.App.3d 155, 158.)

Although defendant is correct that a draft of the proposed amended complaint should have been filed with the moving papers, plaintiff provided a copy with the reply papers, which the court will allow. The court finds that the motion is sufficiently timely in light of the plaintiff's learning of the need to correct statements in the complaint, and the current trial date. The court does not find the pleading to be a sham pleading. Unlike the case law cited by defendant, the proposed pleading does not present new legal or factual theories of liability. Instead, it corrects the allegations to conform to the evidence disclosed in discovery. There is no prejudice to defendants because the information contained in the amendments has been known to defendants (plaintiff learned it from defendants), and there is sufficient time before trial to conduct any discovery necessitated by the changes. Finally, the new allegations of the amended pleading satisfy the relation back doctrine and, therefore, are not barred by the statute of limitations.

Plaintiff must file the proposed amended complaint within 10 days.

Upon filing of the amended complaint, the court will vacate defendant's summary judgment motion hearing and motion to strike Doe amendment, which are both set for August 7, 2026, on the basis that the amended pleading moots those motions.

Plaintiff is to prepare the court's order consistent with the tentative ruling.

NOTE RE: TENTATIVE RULING

This tentative ruling becomes the court's order, and no hearing shall be held unless one of the parties contests it by complying with Rule 3.1308 of the California Rules of Court and Monterey County Local Rule 7.9.

Those parties wishing to present an oral argument must notify all other parties and the Court no later than 4:00 p.m. on the court day before the hearing; otherwise, **NO ORAL ARGUMENT WILL BE PERMITTED, AND THE TENTATIVE RULING WILL BECOME THE ORDER OF THE COURT AND THE HEARING VACATED.**

You must notify the court by emailing TentativeRulings@monterey.courts.ca.gov or by telephoning the Calendar Department at (831) 647-5800, extension 3040, before 4:00 p.m. on the court day before the hearing.